



ಕರ್ನಾಟಕ ರಿಯಲ್ ಎಸ್ಟೇಟ್ ನಿಯಂತ್ರಣ ಪ್ರಾಧಿಕಾರ,

Karnataka Real Estate Regulatory Authority

#1/14, 2nd Floor, Silver Jubilee Block, Unity Building, CSI Compound,
3rd Cross, Mission Road, Bengaluru - 560027.



No.RERA/PS/SOP-1/CR/2020-21

Date: 23/07/2020

CIRCULAR

Subject: Standard Operating Procedures for the conduct of Court proceedings.

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After a detailed deliberations on the conduct of court proceedings, the Authority decides to adopt the following procedure.

A. PREPARATION OF FINAL ORDER AND ITS PRONOUNCEMENT.

1) WHERE THE CASE IS reserved for orders, with the approval of chairman file could be sent to the designated Member for the preparation of the draft orders.

a) The designated Member is required to prepare the draft order within a period of 15 days from the receipt of the file. -

After the orders are drafted by the designated Member, he will submit the file to the Chairman for perusal and for on word transmission to the remaining other Member to ascertain his views/ Signature.

b) After the receipt of the draft order, the receiving member shall resubmit the file within a period of 7 days with his signature or with his dissenting note to the Chairperson.

The Chairperson will finalise the draft after considering the views of both the members within a period of 7 days of the receipt of the file. Therefore after the conclusion of the hearing, orders shall be pronounced by the Authority within a period of 30 days.

c) Neither the Chairman nor Members will record any notings of dissent or any comment of administrative nature on the "Court File". The note sheet of the court file shall only contain the day to day proceedings conducted in the court hall as recorded by the presiding officer (Chairman / Member). - As far as



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possible there shall be uniformity in the orders pronounced by the various benches of the Authority.

In case a Member wants to express his opinion he is at liberty to do so in the correspondence file which is clubbed with the court file.

2) A person of the rank of at least a section officer may be designated as a court officer to assist the court proceedings. Following could be the functions of the court officer.

- i) He will be the custodian of all the court files and he will also handle all the court files before and after hearing.
- ii) Before the first date of hearing of a complaint by the Authority, the court officer will fill up information in the annexure (attached to this SOP) and submit it along with the complaint in the court file for perusal of the Authority.
- iii) To prepare in advance (at least by 4 pm of the previous day) the cause list of the cases to be heard the next day. Serve a copy in the personal section of the Chairperson and the Members and ensure that the cause list is uploaded on the Authorities website.
- iv) To place a copy of the cause list on the notice board within 10:30am of the date of hearing.
- v) To check and verify that the documents / statements / memos / rejoinders / affidavits / vakalatnamas as ordered in the earlier date of hearing have been filed. If not to give a note on the correspondence portion of the file.
- vi) To ensure the attendance of the complainants / promoters on the date of hearing.
- vii) After the day's court proceedings, he will carry out the follow up action of the day's proceedings, by issuing notices / summons to the parties concerned.



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- viii) Care should be taken to draft the notice / summons in accordance with the instructions given in the court hall by the Authority.
- ix) Where the instructions of the Authority as recorded in the court file is a direction to the parties to produce certain documents, the same instructions have to be complied with office notice of the Court Officer, and the other staff members as the case may be. Only the copy of the notice issued in pursuance of the instructions of the Authority shall be placed in the court file.
- x) After the Chairman and the Members have signed the final orders, the Court Officer will ensure that it is put on the website and also communicate to the respective parties.
- xi) The Court Officer will also be in charge of the issue of certified copies.
- xii) Wherever appeals are preferred against the orders of the Authority, the Court Officer will ensure that the files are sent in time to the Tribunal / the High Court.
- xiii) The Court Officer will also ensure for a legal representation before the Appellate Authorities with the approval of the Chairman.
- xiv) The Court Officer shall collect and compile land mark/important judgements of the Supreme Court, High Courts and of other Real Estate Regulatory Authorities. This shall be used by the Authority for a reference purposes.
- xv) The Court Officer will be in charge of the Court Library.

The Court Officer can be given the assistance of a Legal Assistant / Junior Assistants / Senior Assistants.

Cause list can be in the following format.



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Date: / /2020

CAUSE LIST:

MEMBERS OF THE BENCH: 1. M. R. KAMBLE, Chairman.
2. D. Vishnuvardhana Reddy, Member - 1.
3. Adoni Syed Saleem, Member - 2.

DATE OF HEARING: _____

Sl. No.	Complaint No./ Application No.	Applicant / Promoter / Complainant and Advocates Detail	Respondents and Advocates Detail
1	2	3	4

The Court Officer will maintain a case dairy in the following format.

CASE DAIRY BENCH NUMBER :

Sl. No.	Case No.	Applicant / Promoter / Complainant	Respondents	Date of Next Hearing	Date of pronouncement of the Order
1	2	3	4	5	6

The Court Officer will maintain the appeal register in the following format.



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APPEAL REGISTER

Sl. No.	Case No.	Applicant / Promoter / Complainant	Respondents	Appeal Number / Writ Petition Number	Whether Objections filed by RERA	Next Date of Hearing	Remarks
1	2	3	4	5	6	7	8

(Approved by the Authority)

K. S. Atha Kumar
Secretary

Karnataka Real Estate Regulatory
Authority

To,

1. PS to Hon'ble Chairman, Please brought to the notice of Hon'ble Chairman.
2. PA to Hon'ble Member-1, Please brought to the notice of Hon'ble Member-1
3. PA to Hon'ble member-2, Please brought to the notice of Hon'ble Member-2.

Copy to:

1. PS to Secretary to Government, Housing Department, Vikasa Soudha.
2. SGF/ Copy

